

INTER-DEPARTMENTAL CORRESPONDENCE

TO: Seema Somani
1219 CITY HALL
ACCOUNTING

DATE: 3/22/22

FROM: 32 BUILDINGS

SUBJECT: CONTRACTS

CHANGE ORDER

PLEASE: ENCUMBER:

XXX

DISENCUMBER:

CONTRACT NUMBER

93002507

VENDOR NAME

LIRO

VENDOR ID

3059

ACCOUNT CHARGEABLE

33224006-445100

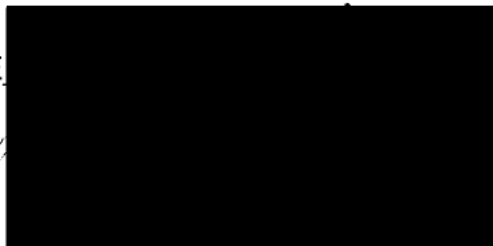
AMOUNT

\$6,941.00

EXPLANATION:

Please encumber additional \$6,941.00 to this contract from account 33224006-445100 per the attached Council approval for a new contract total of \$203,597.00.

DEPARTMENT HEAD SIGNATURE



3/22/2022



The City of Buffalo Common Council

1413 City Hall
Buffalo, NY 14202

ADOPTED

AGENDA ITEM 22-376

Meeting: 03/08/22 02:00 PM
Department: Buildings
Category: Change Order
Prepared By: Melanie Galachiuk-Kelly
Initiator: Melanie Galachiuk-Kelly
Sponsors:
DOC ID: 18276 C

Change Order – Police Training Facility – the LiRo Group

The Department of Public Works, Parks and Streets, Division of Buildings, hereby submits to Your Honorable Body a change order for contract 93002507 with The LiRo Group for the Police Training Facility project. The recommended change order is submitted in accordance with Chapter 96-14 of the City Code and is in the amount of \$6,941.00.

This change order is necessary to add scope and funding to the project in order to complete the project to a higher standard. During design Buffalo Police requested the addition of showers to the new Police Training Facility for use by the officers who will work at this facility.

Funds for this change order are available in account 33224006-445100. This is the first change order for this contract. The following is a summary of the current contract status.

Original Contract Award:	\$196,656.00
Previously Approved Change Orders:	\$0
Present Amount of the Contract:	\$196,656.00
Proposed Change Order:	\$6,941.00
New Contract Amount:	\$203,597.00

The DPW hereby certifies that this change order is necessary and justifiable in accordance with the terms of the contract agreement. We respectfully request that Your Honorable Body approved this change order as described above.

Mr. Rivera moved:

That the above item be, and the above communication from the Department of Public Works, Parks and Streets, Division of Buildings, dated March 8, 2022, be approved; and

That the Common Council hereby authorizes the Department of Public Works, Parks and Streets, Division of Buildings, change order for contract 93002507 with The LiRo Group for the Police Training Facility project. The recommended change order is submitted in accordance with Chapter 96-14 of the City Code and is in the amount of \$6,941.00.

This change order is necessary to add scope and funding to the project in order to complete the project to a higher standard. During design Buffalo Police requested the addition of showers to the new Police Training Facility for use by the officers who will work at this facility.

Approved.

RESULT: APPROVED

Form of Amendment*Owner:*

28-Feb-22

City of Buffalo

*Project:*Buffalo Police Training Facility, Seneca Street
Project No. 1917*Amendment No.:* 1*Consultant:**Revision No.:* 0

LiRo Engineers Inc.

690 Delaware Avenue, Buffalo NY

Subject matter of this amendment [describe changes to the Work, Facility, etc. or Excusable Event]:

See conditions below

The original Contract Price was	\$196,656.00
The net change by previously authorized Change Orders	\$0.00
The Contract Price prior to this Change Order was	\$196,656.00
The Contract Price will be increased by this Change Order in the amount of	\$6,941.00
New Contract Price	\$203,597.00

OTHER CONDITIONS:

The detailed cost estimates supporting this Change Order are attached.

1. Additional architectural services for reconfiguration of the bathroom suites to include addition of showers and reconfiguration of the secure storage area per BPD request. See attached proposal from Foit-Albert Asso.

Adjustments to Agreement Terms: None.

All provisions of the Contract Agreement, except as modified by the Change Order above or by previous Change Orders, remain unchanged.

Consultant Acceptance:

LIRO ENGINEERS, INC.

*Signature:**Printed Name:* Bruce J. Przybyl*Title:* Senior Project Manager / Associate*Date:* 2/28/2022*Owner Acceptance:*

CITY OF BUFFALO

*Signature:**Printed Name:* FRANCISCO GURNAN*Title:* DEPUTY COMMISSIONER*Date:* 3/22/2022



Consultant Fee Schedule

2

LiRo's proposed fee is presented below. The fee includes all subcontractor and direct costs and is based on complete design of the 12,000 SF proposed facility on the identified property and all of the scope of work elements for each phase described by the RFP.

Request for Proposals BUFFALO POLICE SHOOTING RANGE FACILITY JOB # 1917

	LUMP SUM FEES	ANTICIPATED HOURS
1. Pre-Design, Scoping & Programming Phase	\$ 4,080 LS	30 Hrs
2. Site Development Phase	\$ 7,460 LS	104 Hrs
3. Schematic Design Phase	\$ 32,612 LS	350 Hrs
4. Environmental Phase	\$ 8,000 Hourly N.T.E.	
5. Design Development Phase	\$ 38,064 LS	372 Hrs
6. Construction Documents Phase	\$59,752 \$ 54,264 LS	539 Hrs
7. Bid Phase	\$ 6,412 LS	46 Hrs
8. Construction Administration/Closeout	\$47,267 \$ 45,764 LS	488 Hrs
FEE SUBTOTAL / HOURS SUBTOTAL	\$203,647 \$ 196,656 LS	1929 Hrs

TOTAL CONTRACT FEE	\$ 196,656 LS
	\$203,597

NOTES

- The above fee schedule shall be fully completed and included with your proposal. Payments shall be made, at minimum, monthly based on the percentage each task has been completed. In the event a task is not required or the project is canceled, the Consultant shall be paid only for work completed.
- The scope of work listed in this RFP supersedes all submitted proposals, unless the RFP has been modified by addendum or written documents from the owner.
- Fees quoted for each item shall **include** all costs associated with the item, including, but not limited to: mileage, reproduction, printing, phone calls, and postage.
- Prices quoted shall be based on the described Scope of Services and an estimated total construction plus A/E costs of **\$ 1,100,000.00**





Buffalo
295 Main St.
Suite 200
Buffalo, NY 14203
716.856.3933

Albany
435 New Karner Rd
Albany, NY 12205
518.452.1037

New York City
215 West 94th St.
Suite 517
New York, NY 10025
212.372.4813

February 24, 2022

Bruce Przybyl
The LiRo Group
690 Delaware Avenue
Buffalo, BY 14209

RE: Buffalo Police Shooting Range
FA#19072.00

Dear Mr. Przybyl

We are pleased to see that this important City of Buffalo project is coming back online after a long delay. Per our conversation, Foit-Albert Associates is providing this additional services proposal for this project. The costs fall into several categories which are outlined below.

1. The RFP for this project was issued by the City of Buffalo for return on July 12, 2019. The project had an identified budget of \$1.1million including consultant fees and a required design and bidding period of 5 months of notice to proceed. The accepted MOU for the project started the design effort in October 2019 and completed those phases in May 2020. Construction was noted as complete in March of 2021. As such, we proposed a project using 2019 professional services rates. The project was put on hold because the budget was identified as insufficient in 2020. Construction was to begin in August 2020. We were informed in 2022 that the project would be starting again. In the intervening time, our employee rates have increased with cost of living increases that were beyond the anticipated duration of the project.

We respectfully request that the phases that are being over 2 years after our services were to have been substantially completed. We have calculated the hours proposed in our original proposal using both the 2019 and 2022 rates and identified the difference. We are applying that increase to the services that have not yet been performed. The value of this increase to restart the project with the same staff performing the same duties in our original proposal, over 3 years later, is **\$6,070**, as outlined in Attachment 2.

2. The RFP issued in 2019 identified the project as a 12,000 sf facility, utilizing a pre-engineered metal building. The project budget was identified by the City as \$1.1mm. Using this information, we developed our proposal using our professional experience with LiRo, the Prime consultant, in designing other range structures. We considered the tasks performed and hours spent and developed our fee. We back checked that fee as a percentage of construction cost (5.7%) to confirm that it seemed within reason based our professional experience on other similar range projects that we had designed using pre-engineered metal buildings. We note that our fee was not strictly based on a percentage, but was cross checked to confirm that the estimated hours we had projected to provide services for a project of the size, budget and complexity proposed was reasonable.

BJP

It was quickly proven in 2020 that the City of Buffalo proposed budget was insufficient as the approved program, concept plan and Schematic Design estimate came in at \$2.9mm. While we are not using that figure to justify a fee increase, we point out that, had this higher budget been identified in the RFP, we would have identified a greater labor effort on our part, as the crosschecked fee of 2.2% would have been flagged as insufficient immediately. Had this information been presented by the Owner earlier, our fee would have been higher.

Additionally, the RFP identified that the project was to be a pre-engineered metal building. In these types of buildings, structural engineering is provided for foundations, but envelope and superstructure are designed and provided by the pre-engineered metal building manufacturer based on design and aesthetic criteria identified by the design team. A level of design effort is anticipated when the building is pre-engineered metal. It was identified during the design phase, however, that this method of procurement would not provide sufficient sound resistance, or structural capability to support the ballistic panels, nor would the planning board look favorable on a building of that type in this zone. The resulting building is a insulated CMU and steel building, which required a greater design effort by the team than was contemplated because of the statements in the RFP.

The resulting professional services effort, however, to redesign the project to try to meet the originally published \$1.1mm budget was significant. We raised our hand at the time the budget deficiency was identified to identify these services as an additional service. We were directed to proceed with the following exercises to help reduce the project cost to meet the \$1.1mm budget, reductions that would have to cut the project cost by 62% to meet the identified budget:

- Redesigned the project multiple times to introduce design-based alternates to reduce the project cost while still being buildable and usable.
- Undertook value engineering exercise with wholesale changes to materials and methods to attempt to reduce project costs.
- Design of a structure that had a superstructure and envelope detailed design effort to meet the project loading and sound requirements, design services that were not required with a pre-engineered metal building that was identified in the RFP.
- Redesign building to utilize a partial wood frame structure to try to reduce the project cost of the required structure.

3. Additionally, there were numerous changes made after approvals were given to advance phases. These included:

- Additional redesign requests by the Police Department
- Additional 2 story concept designs (drawn in cad) when a pre-engineered building was the RFP design request
- All concept level drawings being presented in CAD rather than hand sketches
- Rotation of building on site after concept was approval, then flipping the building design subsequently, resulting in multiple redesigns to relocate entrances/exits and design relationships to street, then relocating entrances again after approval of that change.

BJP



- Development of rendered models that were not requested in the RFP but requested after the fact.

The cumulative impact of the value engineering and redesigns after approvals had been issued in items 2 & 3 is **\$6,606**.

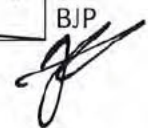
BJP



4. After the budget was increased by the City to provide sufficient funds for the project (late 2021/early 2022), the Police department requested further design changes to introduce showers in each restroom. This will result in redesign in the documents, and a small amount of increase in the construction administrative services and close out. These costs are outlined in Attachment 1, and are **\$6,941**.

The total of the additional services and rate increases on the remaining work that has been stalled for these 2+ years is **\$19,617**.

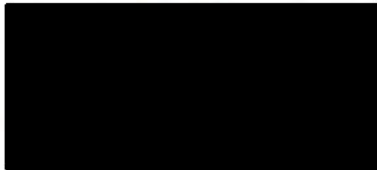
BJP



We are prepared to initiate this work within two weeks of a notice to proceed.

Sincerely,

FOIT-ALBERT ASSOCIATES
Architecture, Engineering and Surveying, P.C.



Gwen A. Howard, AIA
Vice President, Architecture Group

Enc.

Foit-Albert Proposal # 19072 Attachment 1								
Buffalo Police Shooting Range - Revisions 2.23.2022								
Project Fee by Hours								
Staff Loading by Task		Sr. PM	Architect	Arch Tech	Sr. Struct Eng	Jr. Struct Eng.	Total Hours	Fee
		146	114	90	157	94		
scope								
Prescoping	Evaluations & meetings						0	0
	Report						0	0
	subtotal						0	0
SD Phase								
	Concept sketches						0	0
	schematic design plans/arch, found, retaining and interior baffle support						0	0
	outline specification						0	0
	City presentation meeting/prep						0	0
	QAQC						0	0
	subtotal	0	0	0	0	0	0	0
DD Phase								
	drawing and spec						0	0
	Code Review						0	0
	Public art meeting/design						0	0
	QAQC						0	0
	meetings						0	0
	subtotal	0	0	0	0	0	0	0
CD								
	Drawing Revisions	4	8	16			28	2,933
	Additional specs not previously in project		4				4	454
	Add'l MEP coordination meetings		2				2	227
	Finish selections, boards and approval by City		4	8			12	1,174
							0	0
	QAQC	2	2	2			6	699
	subtotal						52	5,488
bidding								
	mtg, addenda						0	0
	subtotal						0	0
ca								
	meetings						0	0
	Add'l submittals		2	4	1	2	9	932
	rfl's		1	2			3	294
	Additional duration/differential because of project delays							
	subtotal						12	1,226
close out								
			2				2	227
							0	0
Total hours & Fee		6	25	32	1	2	66	6,941